

CHILDS RIGHTS





INTRODUCTION

Child rights are the fundamental human rights entitled to every person under 18, ensuring their protection, development, survival, and participation for a safe and healthy childhood.

Child rights came into being to protect children from exploitation, neglect, and abuse, and to ensure their well-being and development. After the devastating impact of two world wars, the need to safeguard children's rights gained global attention. In 1959, the United Nations adopted the Declaration of the Rights of the Child. Building on that, the UN Convention on the Rights of the Child (UNCRC) was adopted in 1989. It became the most widely ratified human rights treaty, setting global standards for the care, protection, and participation of children in society.

DIFFERENT TYPES OF VIOLATIONS FACED BY CHILDREN

Child abuse is physical, sexual, emotional and/or psychological maltreatment or neglect of a child, especially by a parent or a caregiver.

Child labor refers to the exploitation of children through work that deprives them of their childhood, potential, and dignity, and is harmful to their physical and mental development.

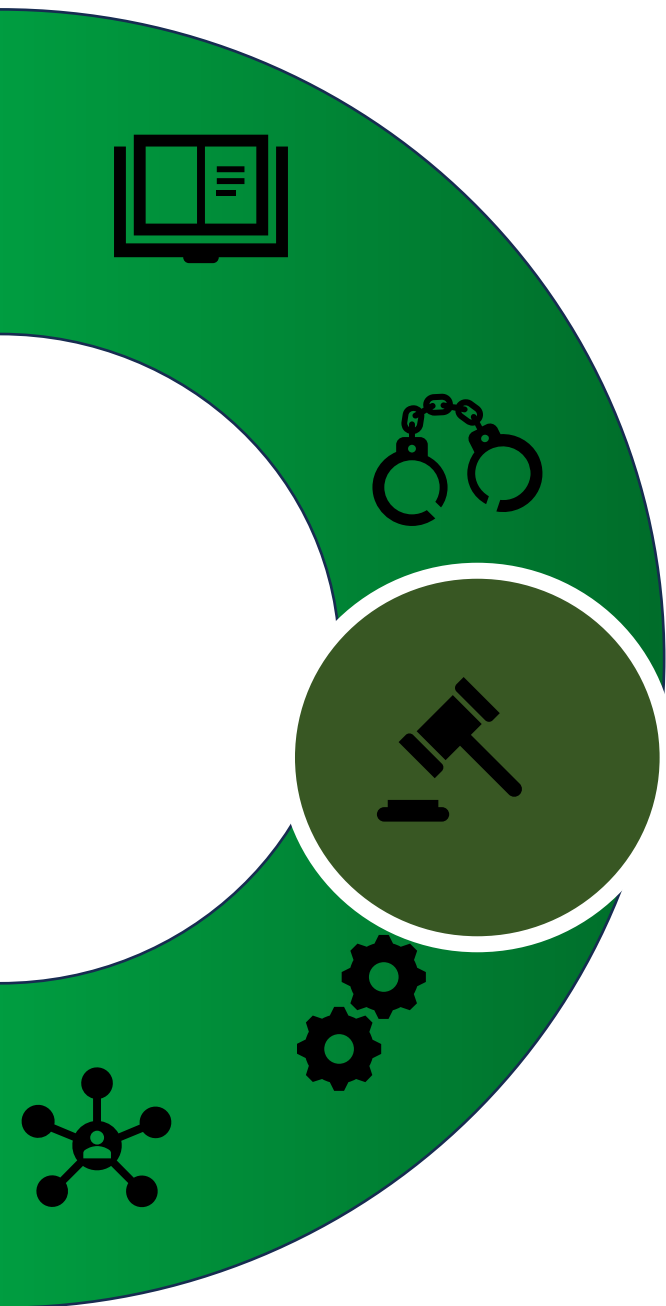
Commercial Sexual Exploitation of Children defines the "umbrella" of crimes and activities that involve inflicting sexual abuse on to a child as a financial or personal opportunity.

Child marriage in India in Indian law is a marriage in which the bride is less than 18 years of age.

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NATIONAL LAWS AND POLICIES

India's national framework for child rights is rooted in its Constitution, which guarantees fundamental rights such as equality, education, and protection from exploitation. These rights form the basis for all child-related laws and policies in the country.

Key legislations include the Juvenile Justice (Care and Protection of Children) Act, 2015, which provides for the care, rehabilitation, and social integration of children in need. The Protection of Children from Sexual Offences (POCSO) Act, 2012 ensures child-friendly legal procedures and strict punishment for sexual offences against minors.

In addition to laws, policies like the National Policy for Children (2013) focus on survival, health, nutrition, education, and protection. The Right to Education Act, 2009 mandates free and compulsory education for children aged 6 to 14. Together, these laws and policies reflect India's commitment to creating a safe, inclusive, and nurturing environment for all children.

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FUNDAMENTAL CATEGORIES OF CHILD RIGHTS

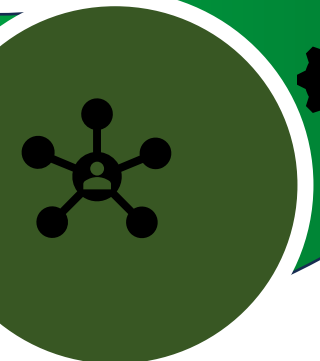
The fundamental categories of child rights can be broadly classified into Survival, Development, Protection, and Participation. 1. Survival: This category focuses on the basic necessities for life, including the right to be born, access to adequate food, shelter, clothing, and healthcare. It also encompasses the right to live with dignity and access to a safe and healthy environment.

2. Development: This category includes the right to education, learning, play, and all forms of development, including emotional, mental, and physical development. It emphasizes the importance of nurturing a child's full potential.

3. Protection: This category ensures children are safeguarded from all forms of violence, neglect, abuse (physical, sexual, and emotional), and exploitation. It includes protection from harmful practices like child marriage and trafficking.

4. Participation: This category acknowledges children's right to freedom of opinion, expression, association, and access to information. It also emphasizes their right to participate in decisions that affect them, according to their age and maturity.





ROLE OF CIVIL SOCIETY

1. **Advocacy and Policy Change:** NGOs actively lobby for stronger laws and policies to protect children from abuse, exploitation, and neglect. They also monitor government performance in implementing child rights conventions and treaties.
2. **Direct Services:** Many NGOs provide direct services to children, such as shelter for orphaned or abandoned children, education and healthcare, and rehabilitation programs for children who have experienced violence or exploitation.
3. **Legal Aid and Support:** Provide legal assistance to children who are victims of abuse, trafficking, labor, or violence. Help in rescue operations and rehabilitation of affected children. Promote implementation of child-friendly legal procedures. Examples of NGOs Active in Child Rights. Save the Children – education, emergency response, health and protection . CRY (Child Rights and You) – works on rights to survival, development, protection and participation . Bachpan Bachao Andolan – rescue and rehabilitation of child laborers and trafficking victims.
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